

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with the format in part 12, as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; quotes are being requested and a written solicitation will not be issued. Incorporated provisions and clauses are those in effect though the most current Federal Acquisition Circular.

RFQ Number is N66604-26-Q-0237. Note: This is an amendment to previously posted RFQ N66604-26-Q-0069.

Naval Undersea Warfare Center Division, Newport (NUWCDIVNPT) intends to award a five (5) year Indefinite Delivery/Indefinite Quantity (IDIQ), multiple award contract, with Firm Fixed Price (FFP) provisions, to Narda-Miteq and its authorized distributor Exponential Technology Group, Inc (RFMW). Miteq is the original and sole manufacturer of the RF amplifiers utilized in the production and repair of various units including Low Profile Photonics Mast (LPPM) and Flared Base Group (FBG) antenna assemblies. Miteq is the only approved source certified by the Government to meet all antenna assembly and Imaging Mast Specification requirements. Developing and certifying a second source of supply for the RF amplifiers has been determined to be cost prohibitive and any potential savings due to competition would be offset by the substantial duplication of costs.

This requirement is being solicited on an unrestricted basis as concurred with by the NUWCDIVNPT Office of Small Business Programs. The NAICS Code for this requirement is 335313 (Switchgear and Switchboard Apparatus Manufacturing) and the small business size standard is 1,250 employees.

The Contract Line Item Number (CLIN) structure is identified below:

CLIN 0001: Post Award Conference, Qty 1 Job

CLIN 0002 Miteq Brand Name Radio Frequency (RF) Amplifiers, P/N and quantities will be determined in individual orders.

Description	Narda-MITEQ P/N
RF Amplifier, GPS	AFD3-012017-15-10P-11
RF Amplifier, HBO	JSD4-18004000-40-8P
RF Amplifier, LBOL	AFS2-00150100-22-18P-4-L
RF Amplifier, LBOH	AFS3-01000800-25-13P-4-L
RF Amplifier, MBO	AFS4-08001800-32-10P-4-L
RF Amplifier, HBO	JS4-18004000-32-6P-GW
RF Amplifier, DF	AFS2-02001800-50-12P-6-L-HP
RF Amplifier, HORN	JS3-18004000-40-4P
RF Amplifier, DF	LNAS-10-02001800-57-7P-S-1
RF Amplifier, GPS, with Relay	SAFS3-01200170-15-10P-S
RF Amplifier, HBO	JSD00533
RF Amplifier, LBOL	JSD00529
RF Amplifier, LBOH	JSD00530
RF Amplifier, MBO	JSD00532
RF Amplifier, DF	JSD00531

CLIN 0003: Contract Data Requirements List (CDRLs) Not Separately Priced (NSP), 1 Lot

NOTE: If only one technically acceptable offer is received, the below CLIN structure will be used:

CLIN 0001 Miteq Brand Name Radio Frequency (RF) Amplifiers P/N and quantities will be determined in individual orders

CLIN 0002: Contract Data Requirements List (CDRLs) Not Separately Priced (NSP), Qty 1 Lot

Note: Orders exceeding the Micro Purchase threshold shall be issued via Delivery Order. Orders under the micro purchase threshold may be placed via Government Purchase card without issuance of a delivery order.

The resultant contract(s) will contain provisions for delivery orders to be awarded on a Firm-Fixed-Price (FFP) basis. The cumulative total of all delivery orders issued under the IDIQ MAC among MAC holders will not exceed the total, maximum contract ceiling of 1330 units. Delivery orders and orders via purchase card for amplifiers will be competed at the order level.

The contract minimum guarantee referred to in paragraph (b) of FAR Clause 52.216-22 'Indefinite Quantity' is: CLIN 0001 Post Award Conference (kick-off meeting) in the amount of \$200.00 per MAC awardee. The Government's minimum obligation will be satisfied with an initial \$200 Firm Fixed Price Order to attend a Post Award Conference (CLIN 0001).

Note: If only one technically acceptable offer is received the minimum guarantee of the single awardee will be 259 Amplifiers.

Delivery location: FOB Destination NUWCDIVNPT Newport, RI

Date of Delivery: To be established at order level

Full text of incorporated FAR/DFARS clauses and provisions may be accessed electronically at <https://acquisition.gov/>

The following provisions and clauses apply reference to this RFQ:

FAR 52.204-7 System for Award Management
FAR 52.204-13 System for Award Management Maintenance
FAR 52.204-16 Commercial and Government Entity Code Reporting
FAR 52.204-18 Commercial and Government Entity Code Maintenance
FAR 52.204-19, Incorporation by Reference of Representations and Certifications
FAR 52.204-21 Basic Safeguarding of Covered Contractor Information Systems
FAR 52.204-24, Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment
FAR 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment
FAR 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations
FAR 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or Felony under any Federal Law
FAR 52.212-1, Instructions to Offerors--Commercial Item
FAR 52.212-2, Evaluation – Commercial Items
FAR 52.212-3, Offeror Representations and Certifications – Commercial Items
FAR 52.212-4, Contract Terms and Conditions – Commercial Items
FAR 52.212-5, Contract Terms and Conditions Required to Implement Statutes or Executive Orders – Commercial
FAR 52.222-3, Convict Labor
FAR 52.222-19, Child Labor—Cooperation with Authorities and Remedies
FAR 52.222-36, Equal Opportunity for Workers with Disabilities
FAR 52.222-50, Combating Trafficking in Persons
FAR 52.223-18, Encouraging Contractor Policies to Ban Text Messaging while Driving
FAR 52.232-33, Payment by Electronic Funds Transfer-System for Award Management
FAR 52.232-39 Unenforceability of Unauthorized Obligations
FAR 52.233-1 Disputes

FAR 52.233-3 Protest After Award
FAR 52.240-90 Security Prohibitions and Exclusions
FAR 52.243-1 Changes--Fixed Price

The following Defense Federal Acquisition Regulations Supplement (DFARS) provisions and clauses apply to this solicitation:

252.203-7000 Requirements Relating to Compensation of Former DoD Officials
252.203-7002 Requirement to Inform Employees of Whistleblower Rights
252.204-7003 Control Of Government Personnel Work Product
252.203-7005 Representation Relating to Compensation of Former DoD Officials
252.204-7008 Compliance with Safeguarding Covered Defense Information Controls
252.204-7009 Limitations on the Use or Disclosure of Third- Party Contractor Reported Cyber Incident Information
252.204-7012 Alt 1 Safeguarding Covered Defense Information and Cyber Incident Reporting
252.204-7019 Notice of NIST SP 800-171 DoD Assessment Requirements
252.204-7020 NIST SP 800-171 DoD Assessment Requirements
252.204-7024 Notice on the Use of the Supplier Performance Risk System
252.211-7003 Item unique Identification and Valuation
252.225-7048 Export-Controlled Items
252.232-7003 Electronic Submission of Payment Requests and Receiving Reports
252.232-7006 Wide Area WorkFlow Payment Instructions
252.232-7010 Levies on Contract Payments
252.243-7001 Pricing Of Contract Modifications
252.244-7000 Subcontracts for Commercial Products or Commercial Services
252.247-7023 Transportation of Supplies by Sea

Clauses incorporated by Full Text:

FAR 52.216-18, Ordering (Aug 2020)

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from *Date of Contract* through *five (5) years After Date of Contract*.
 - (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
 - (c) A delivery order or task order is considered "issued" when—
 - (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
 - (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
 - (3) If sent electronically, the Government either—
 - (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
 - (ii) Distributes the delivery order or task order via email to the Contractor's email address.
 - (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.
- (End of clause)

FAR 52.216-19, Order Limitations (Oct 1995)

- (a) *Minimum order*. When the Government requires supplies or services covered by this contract in an amount of less than *one (1) unit*, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
- (b) *Maximum order*. The Contractor is not obligated to honor—
 - (1) Any order for a single item in excess of *two hundred sixty (260) units*;
 - (2) Any order for a combination of items in excess of *nine hundred (900) Units*.
 - (3) A series of orders from the same ordering office within *60* days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection [52.216-21](#) of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within *five (5) business* days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

FAR 52.216-22, Indefinite Quantity (Oct 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after *sic (6) years ADC*.

(End of clause)

Additional terms and conditions:

1. In accordance with DFARS Clause 252.211-7003, the contractor shall provide a unique item identifier (UID) for all delivered items for which the Government's unit acquisition cost is \$5,000.00 or more.
2. The Government's preferred method of payment is Government Purchase Card (Mastercard) but if there is a credit card surcharge, the per unit price is more than \$5,000, or the offeror does not accept Mastercard then the method of payment will be electronic payment via Wide Area Workflow (WAWF).
3. Quotes and any attachments shall be readable by Microsoft Office or Adobe Acrobat. Offeror shall include the following information with the submissions: point of contact (including phone number and email address), Contractor CAGE Code, and Contractor SAM Unique Entity ID.

An award will be made to all technically acceptable offerors. To be determined technically acceptable, offerors shall

- 1) Offeror shall be the Original Equipment Manufacturer (OEM) or an OEM Authorized distributor of Narda-Miteq amplifiers. Authorized distributors shall provide proof of authorized distributor status which the Government will verify with the OEM prior to award.
- 2) Offeror shall confirm ability to provide all amplifiers identified in CLIN 0002 equipment list.
- 3) Offeror shall accept credit card. Credit card surcharge shall not exceed 4%
- 4) Offeror shall have an active registration in SAM at the time of quote submission.

Quotes shall be submitted electronically via email to Hannah Murphy at Hannah.l.murphy7.civ@us.navy.mil and must be received on or before the closing date listed in this SAM Posting. Quotes received after this date and time are late and may not be considered for award. For questions pertaining to this acquisition, please contact Hannah Murphy at Hannah.l.murphy7.civ@us.navy.mil

